JDF 612	**Motion to Seal Conviction Records** District or County Court Conviction

A. Court

Type: (ex: County or District) _____

Colorado County: El Paso

Court Address:

This box is for court use only.

B. Parties to the Case

Plaintiff: People of the State of Colorado

vs.

Defendant: Maria-Alejandra O'Shaughnessy-Whitfield

C. Case Details

Number: 2024CR0011882-SUPPLEMENTAL

Division/Courtroom: _____

1. Background

I submit this motion to seal conviction records under C.R.S. §§ 24-72-703 and 706 or 707.

2. My Information *(the Defendant)*

Date of Birth: 12/31/1968

Mailing Address: 1188 Upper Notch Crossing Road, Apartment 14B

City, State, & Zip: Colorado Springs, CO 80921-2214

Phone: (719) 555-0199 ext. 4417

Email: maria.alejandra.oshaughnessy.whitfield@longmailexample.org

Do you need an interpreter? ◯ No ◯ Yes, in *(language)* _____

I want to attend court events: ◯ In-person ◯ Virtually *(by phone or web video)*

To switch your choice: Use form *JDF 76 – General Motion*. File at least 48 hours *before an event*.

3. Records to be Sealed

I request that the following conviction records be sealed:

☐ District or County Court Case Number: 2024CR0011882-SUPPLEMENTAL

☐ Prosecuting Attorney

☐ Sheriff's Department
Mailing Address: _____

☐ Colorado Bureau of Investigation ***(Required)***
ATTN Identification-Seals, 690 Kipling St., STE 3000, Lakewood, CO 80215

☐ Law Enforcement: (Agency Name) _____

Agency Mailing Address: _____

Agency Case Number: _____

☐ Law Enforcement: (Agency Name) _____

Agency Mailing Address: _____

Agency Case Number: _____

☐ Other: (Name) _____

Mailing Address: _____

☐ Other: (Name) _____

Mailing Address: _____

4. Offense Information

I was convicted of these offenses in this case:

☐ Petty Offense(s) of _____

☐ Misdemeanor Offense(s) of _____

☐ Felony Offense(s) of _____

Date Sentenced: _____

Probation/Parole Supervision Termination Date: _____

a) Drug Offenses

Were any of these drug offenses committed before October 1, 2013?

◯ Yes ◯ No

Note: The court determines the eligibility of drug offenses (committed before October 1, 2013) by the offense's classification at the time of sealing.

b) Victim of Human Trafficking

Were you a victim of human trafficking and trafficked for the offense you committed?

◯ No

◯ Yes

Eligibility under C.R.S. § 24-72-707

5. Eligibility

a) Convictions Not Eligible

Note: These are not eligible for sealing under C.R.S. § 24-72-706.

- When the only charges in a case are:
  - Class 1 or Class 2 misdemeanor traffic offenses
  - Class A or Class B traffic infractions.
- A conviction for a violation of C.R.S. § 42-4-1301(1) or (2);
- A conviction for an offense for which the underlying basis involved unlawful sexual behavior as defined in C.R.S. § 16-22-102(9);
- A conviction for a violation of C.R.S. § 18-6-401;
- A conviction that is subject to one or more of the following provisions:
- Sentences for a crime involving extraordinary aggravating circumstances pursuant to C.R.S. § 18-1.3-401(8);
- A sentence for an extraordinary risk crime pursuant to C.R.S. § 18-1.3-401(10);
- Sentencing for a crime involving a pregnant victim pursuant to C.R.S. § 18-1.3-401(13);
- Sentencing for a crime pertaining to a special offender pursuant to C.R.S. § 18-18-407;
- Sentencing for a criminal conviction for which the underlying factual basis involves domestic violence as defined in C.R.S. § 18-6-800.3;
- Sentencing for a criminal conviction for a sexual offense pursuant to C.R.S. 18-3-401 through 418;
- Sentencing for any crime of violence pursuant to C.R.S. § 18-1.3-406;
- Sentencing for a felony crime enumerated in the Victim's Rights Act, C.R.S. § 24-4.1-302(1);
- Sentencing for a felony offense in violation of C.R.S. § 18-9-202;
- Sentencing for an offense classified as a class 1 or 2 felony or a level 1 drug felony pursuant to any section of Title 18 of the Colorado Revised Statutes;
- Sentencing for an offense classified as a class 3 felony pursuant to any section of title 18, except for marijuana cultivation under C.R.S. § 18-18-106(8)(a)(II)(B) as it existed prior to July 1, 1992; C.R.S. § 18-18-406(8)(a)(II)(B) as it existed prior to August 11, 2010; or C.R.S. § 18-18-406(6)(a)(II)(B) as it existed prior to October 1, 2013;
- Sentencing for an offense in violation of C.R.S. §§ 18-6-101 through 105;
- Sentencing for an offense in violation of: C.R.S. §§ 18-3.5-103(4) through (9); 18-5-902(1); or 18-7-203.

b) My Eligibility

I qualify to have my conviction records sealed because my conviction:

◯ Is eligible for sealing under C.R.S. §§ 24-72-706 or 707.

◯ A misdemeanor offense that is not eligible for sealing under C.R.S. § 24-72-706.

Check one:

◯ The **district attorney consents** to the sealing.

◯ I **request a hearing** to determine if the district attorney consents to the sealing.

◯ The **district attorney does not consent** to the sealing.

If the District Attorney does not consent (now or at the hearing), you must show by clear and convincing evidence that:

- the need for sealing the record is significant and substantial,
- the passage of time is such that you are no longer a threat to public safety, and
- the public disclosure of the record is no longer necessary to protect or inform the public.

6. Case Process

a) Automatic Sealing

Do you believe the Court should have automatically sealed this case under C.R.S. § 13-3-117?

◯ Yes ◯ No

b) Appeals

Was this case appealed?

◯ Yes* ◯ No

* **If yes**, please provide the following information:

Appeal Case Number: _____

Appellate Court: _____

Result: _____ Date: _____

C) Restitution

Do you still owe restitution?

◯ Yes ◯ No

7. Criminal Record

Is a verified copy of your criminal history record (dated within the last 20 days) attached?

◯ Yes ◯ No*

*** If not,** a copy must be filed within ten days of this Petition.

8. Harm or Adverse Consequences

For convictions other than petty offenses or petty drug offenses:

You must show that the harm to your privacy or the danger of unwarranted, adverse consequences outweighs the public interest in retaining the records.

9. Certificate of Service

On *(enter service date)* _____

I certify that I sent a copy of this document to the prosecuting attorney by: *(select one)*

◯ Colorado Courts E-Filing. *(only available to lawyers)*

◯ Regular Mail, addressed to: *(name)* _____

Full address: _____

◯ Other: *(explain)* _____

10. Sign & Date

Print Your Name: Maria-Alejandra O'Shaughnessy-Whitfield

Signature: _____

Date: _____

Counsel Signature: *(if any)* _____

JDF 613	**Order Denying Request to Seal Conviction Records**

A. Court

☐ District ☐ County

Colorado County: El Paso

Court Address: _____

This box is for court use only.

B. Parties to the Case

Plaintiff: People of the State of Colorado

v.

Defendant: Maria-Alejandra O'Shaughnessy-Whitfield

C. Case Details

Number: 2024CR0011882-SUPPLEMENTAL

Division: _____

Courtroom: _____

1. Decision

After reviewing the request to seal the Defendant's records, the Court finds:

☐ The motion, on its face, is insufficient. Or,

☐ After review of matters outside the motion, the Defendant is not entitled to relief under C.R.S. §§ 24-72-706 to 710.

The Court denies the motion because:

2. So Ordered

By: _____

☐ Judge ☐ Magistrate

Dated: _____

JDF 614	**Order and Notice of Hearing** (re sealing conviction records)

A. Court

☐ District ☐ County

Colorado County: El Paso

Court Address: _____

This box is for court use only.

B. Parties to the Case

Plaintiff: People of the State of Colorado

v.

Defendant: Maria-Alejandra O'Shaughnessy-Whitfield

C. Case Details

Number: 2024CR0011882-SUPPLEMENTAL

Division: _____

Courtroom: _____

1. Hearing Scheduled

A hearing on this matter has been set at the location identified in the caption as follows:

Date: _____ **Time:** _____

☐ If checked, the Defendant is required to attend the hearing.

2. Decision

Defendant filed a Motion to Seal Criminal Conviction Records in this Court in accordance with C.R.S. §§ 24-72-706 to 710. The Court finds that a hearing is necessary in this matter for the following reason(s):

- ☐ The District Attorney objects to the Motion;
- ☐ The Defendant is seeking to seal an offense that is a crime enumerated in C.R.S. § 24-4.1-302, and the District Attorney has informed the Court that the victim objects and requests a hearing;
- ☐ The Defendant is seeking to seal an offense pursuant to § 24-72-706(1)(f)(IV), C.R.S., and a hearing is required by the applicable statute.

If Defendant is seeking to seal an offense pursuant to § 24-72-706(1)(f)(IV), C.R.S., any objection by the District Attorney to Defendant's Motion must be filed with the Court no later than _____ days prior to the hearing date.

3. So Ordered

Dated: _____ By: _____

JDF 615	Order to Seal Conviction Records

A. Court Information

Type: (ex: County or District) _____

Colorado County: El Paso

Court Address:

This box is for court use only.

B. Parties to the Case

Plaintiff: People of the State of Colorado

vs.

Defendant: _____

C. Case Details

Number: 2024CR0011882-SUPPLEMENTAL

Division: _____

Courtroom: _____

The Court Completes the Rest of this Form

1. Background

The Court has read the Motion and any responses and reviewed the record and evidence presented at a hearing. The Court finds the Defendant is eligible to seal their conviction records. Alternatively, the Court also finds the request is sufficient on its face, no objection has been filed, and that a hearing is not required under C.R.S. § 24-72-704(1)(c)(II).

2. Defendant's Information

a) Full Name: _____

b) Birth Date: _____

c) Mailing Address: _____

City, State, and Zip Code: _____

3. Court Findings

The Court finds that it is appropriate to grant the Motion under C.R.S. §§ 24-72-706, or 707, as follows:

☐ **a) Petty Offense**

The Motion is for the sealing of a petty offense or petty drug offense, and the Defendant's criminal history documents that the Defendant has not been convicted of a criminal offense since the date of the final disposition of all criminal proceedings against the Defendant or since the date of Defendant's release from supervision, whichever is later.

☐ **b) Eligible Misdemeanor or Felony**

The Motion is for the sealing of an eligible class 1, class 2, or class 3 misdemeanor, a drug misdemeanor, a class 4, class 5, or class 6 felony, or a level 2, 3, or 4 drug felony, and Defendant's criminal history documents that the Defendant has not been convicted of a criminal offense since the date of the final disposition of all criminal proceedings against the Defendant or since the date of Defendant's release from supervision, whichever is later.

☐ **c) Consequences v Public Interest**

The Court finds that the harm to the privacy of the Defendant or the dangers or unwarranted, adverse consequences to the Defendant outweigh the public interest in retaining the records, and the Defendant's criminal history documents that the Defendant has not been convicted of a criminal offense since the date of the final disposition of all criminal proceedings against the Defendant or since the date of Defendant's release from supervision, whichever is later.

☐ **d) Victim of Human Trafficking**

The Court finds by a preponderance of the evidence that the Defendant was trafficked by another person, as defined by C.R.S. §§ 18-3-503 or 504, to perform the offense for which the Defendant was convicted.

4. Court Orders

a) Records Sealed

Criminal records information relating to and contained in:

1) The above-captioned case; and
2) Law Enforcement Agency: _____
   Case number: _____
   Arrest number: _____

The Records must be sealed immediately, except for basic identifying information. If an inquiry is made, the Person in Interest and Criminal Justice Agency may reply that no such records exist. This order applies to public and private custodians of the records.

b) Case Sealed

The Court directs the Clerk of Court to seal the above-captioned case.

c) Service

The Court's clerk shall provide a copy of this Order to the Colorado Bureau of Investigation (CBI) and every records custodian listed in the Petition.

d) Other Orders

So Ordered

By: _____ Dated: _____

◯ Judge ◯ Magistrate

JDF 205	Motion to Waive Fees	
	1. Case Number: 2024CR0011882-SUPPLEMENTAL	
	2. Case filed in: *(county)* El Paso	*Clerk's Event Code:* MIFP

3. Background

I request that court fees be waived under C.R.S. § 13-16-103 and C.J.D. 98-01.

This form is not for everyone:

- If you are incarcerated, use form JDF 201 instead.

4. My Information

Full Legal Name: Maria-Alejandra O'Shaughnessy-Whitfield

Do you need an interpreter? ☐ No. ☐ Yes, in *(language)* _____

Date of Birth: *(DD/MM/YYYY)* 31/12/1968

Social Status: ☐ Single. ☐ Married/Civil Union. ☐ Divorced. ☐ Separated. ☐ Widowed.

Mailing Address: 1188 Upper Notch Crossing Road, Apartment 14B

City: Colorado Springs State: CO Zip: 80921-2214

Phone: (719) 555-0199 ext. 4417 Email: maria.alejandra.oshaughnessy.whitfield@longmailexample.org

5. Fees Waived

If the Court determines you qualify *(found indigent),* the following fees may be waived:

- Filing Fees.
- Reasonable Copy Fees.
- Jury Fees.
- eFiling and eService Fees *(when available)*.
- Form and Instruction fees.

☐ If checked, please also waive: _____

Note: The Court can only waive its fees. Outside fees, like transcript costs, can't be waived.

6. Automatic Qualification

Are you enrolled in one of these programs? ☐ No. **[Go to Section 7]**

☐ Yes: *(check all that apply)*

- ☐ Aid to the Blind Colorado
- ☐ Old Age Pension – A and B
- ☐ Supp. Security Income (SSI)
- ☐ Temporary Aid for Needy Families (TANF)
- ☐ Supp. Nutrition Assistance Program (SNAP)
- ☐ Aid to the Needy and Disabled (AND)

Then, leave Sections 7 through 10 blank. **[Skip to Section 11]**

7. Home and Work

Do you own or rent your home? ☐ Own ☐ Rent ☐ Other: _____

Do you have a job now? ☐ No. ☐ Yes.

If *No*, List the date of your last paycheck: *(mm/dd/yyyy)* _____

If *Yes*, My pay rate is: $_____ per ☐ Hour ☐ Month.

How often do you get paid? *(examples: monthly, weekly)* _____

8. Household

How many people live in your home? *(include yourself)* _____

Name	Age	Relationship to You	Are They Financially Dependent on You?
			☐ Yes ☐ No
			☐ Yes ☐ No
			☐ Yes ☐ No
			☐ Yes ☐ No

9. Household Income and Expenses

Monthly Income	$ Amount	Monthly Expenses	$ Amount
a. Mine *(wages/commission/tips)*		a. Rent/Mortgage	
b. Of household members		b. Groceries *(above food stamps)*	
c. Unemployment benefits		c. Utilities	
d. From your retirement funds		d. Child/Spousal support you pay	
e. Spousal Support you get		e. Medical and dental costs	
f. Other:		f. Transport costs *(car, insurance)*	
g. Other:		g. Student loans and credit cards	
Total Monthly Income		**Total Monthly Expenses**	

What Not to Include

- Don't include child support, TANF, VA benefits, or food stamps as income.
- Don't include roommates' income.
- Exclude roommates' share of the bills in monthly expenses.

Roommate Exception: If you share bank accounts or comingle funds.

How do you pay the bills ***if*** your income is less than your expenses?

10. Household Assets

Accounts	$ Value	Description
Cash		Money with you or at home.
In Savings		Bank Name:
In Checking		Bank Name:

Property	$ Value	Description of Asset	Money Still Owed
Cars, boats, or RVs			
Homes and land			
Other property			
Stocks, bonds, jewelry and other valuables			
Any other investments			

Is there anything else you want the court to know about your financial situation?

Note: In some circumstances, the Court may require you to provide proof of income, assets, or expenses before deciding your motion.

11. Verified Signature

I declare under penalty of perjury under the law of Colorado that the foregoing is true and correct.

Executed on the *(date)* _____ day of *(month)* _____ *(year)* _____

at City: *(or other location)* _____

and State: *(or country)* _____

Print Your Name: Maria-Alejandra O'Shaughnessy-Whitfield

Your Signature: _____

Lawyer Signature: *(If any)* _____

JDF 206	Order re Court Fees

A. Court

☐ District ☐ County ☐ Probate ☐ Juvenile

Colorado County: El Paso

Mailing Address: _____

B. Parties to the Case

Petitioner/Petitioner: _____

v.

Defendant/Respondent: Maria-Alejandra O'Shaughnessy-Whitfield

This box is for court use only.

C. Case Details

Number: 2024CR0011882-SUPPLEMENTAL

Division: _____

Courtroom: _____

1. Background

The Court has reviewed the *Motion to Waive Fees* filed by *(name)* _____

2. Findings and Orders

The Court finds that the Party is:

a) ☐ Indigent.

All Court fees and costs are waived, including:

- Filing Fees.
- Reasonable Copy Fees.
- Jury Fees.
- eFiling and eService Fees *(when available)*.
- Fees for Forms and Instructions.

☐ If checked, also waive/provide: _____

These fees are waived for the duration of the case, or until final orders are issued if in a Domestic Relations case.

b) ☐ Not Indigent but allowed to pay in installments.

The filing fee of $_____ can be paid in: ☐ Two Payments. ☐ Three Payments.

The first payment is due by *(date)* _____

The next payment is due by *(date)* _____

The final payment is due by *(date)* _____

If payment is not received according to the schedule above, the Court can dismiss the

party's claims, or the entire case, without further notice. C.J.D. 98-01 Section (VI).

c) ☐ Not Indigent.

The party is responsible for payment of any court fees and costs.

☐ If checked, the party must pay the filing fee of $_____ by *(date)* _____

3. Findings Made by

Name: _____ On *(date)* _____

☐ Judicial Officer ☐ Court Staff

So Ordered

Signature: _____ Dated: _____

☐ Judge ☐ Magistrate